

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Present: Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO. Along with Arjun Kohli, Law Consultant

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virender Modi, No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.**134**/Vivek Purohit, No. **142**/Bharat Das Vishnav and No. **177**/Rajiv Kumar Rana are in custody produced through VC.

Accused Vivek Harivasi (**115**), Vijay Shukla (**149**), Raj Kumar Modi (**176**), and Surender Singh (**140**) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Vimal Sanwal Sharma (**147**), Ajit Singh (**150**), Ramlal Arya (**158**), Dishan **182** to **186** in person being on bail.

Accused Leena Harivassi (**146**) Hemant Kumar (**159**), Parveen Kumar (**161**), Ravi Kr. Tak (**166**), Raj Kumar Bohra (**171**), Damyanti Bhandari (**179**), not present (exemption filed)

Accused Bharat Kumar Mardia (**No.154**) not present but represented by Sh. Peeyush Jain, Advocate.

Accused Akshat Singh (**No. 136**) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (**No. 127**) in person represented by Ms.Manisha Singh, Advocate.

Accused Shiv Raj Sharma (**No. 160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

AR Kanak Krishi of accused Company (**No. 106**) not present but represented by Sh. Nitish Bhardwaj, Advocate.

Accused company SEARS Built Pvt. Ltd. **No. (83)**, Alba Polymers Ltd. (**101**), Padamawati Art creation Pvt. Ltd. (**107**), Vishal Ditigal Studio (**112**) not present.

Accused Jainam Rathore (**No. 130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (**No. 132**) and Neha Ghemawat Modi (**No. 124**).

Sh. Neeraj Dev Gaur, Advocate for accused Megha Chauhan (**No. 163**) (exemption filed)

Accused nos. **144,145,148,151** on bail but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019,

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Ms. Manisha Singh, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

Accused Nos. **71** to **78**, companies, through accused Sidharth Chauhan (**135**) on interim bail granted by Hon'ble High Court.

Accused No. **79**, company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, through accused Jainam Rathod (No.130).

Accused Nos. **86, 87** and **88**, companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail not present Shri Bhim Sing Motsara Advocate.

Accused No. **89**, company, through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97**, companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR in person

Accused No. **104**, company, represented through Shri Vicky, AR, in person
Accused No. **105**, company, represented through Shri Anup AR, in person
Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR, in person

Accused No. **108**, company, represented through Shri Jinsan, AR, in person
Accused No. **109**, company, represented through Shri Vikas Paul, AR, in person
Accused Nos. **110**, company, represented through Shri Raju Yadav, AR, in person
Accused No. **111** company, represented through Shri Ritik Sharma, AR, in person

Accused Nitin Rathore (**116**) in person.

Accused No. (**141**) Aditya Sarda on bail with Shri Sandeep Aneja, Advocate.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (**119**)

Sudhir Punia (**143**), not produced

None for the accused Nos. **117**, and (**137**)

Accused (No. **187**) Mahesh Kumar (exemption filed)

Proceedings qua accused Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) abetted vide order dated 25.03.2022.

Shri Manul Mittra Advocate for accused Bharat Modi (126), Vaibhav Lodha (120), Ishwar Singh (131), Rohit Modi (123), Bharat Das Vaishnav (**142**).

Shri Karamveer Advocate for accused Abhey K. Shah (127), accused no. 84, Ichchhita Dundarwal (180) and Neha Kataria (181).

Shri Arun Sharma Advocate for accused Nazima Jhan(152).(exemption filed)

Accused Paras Boli (121) exemption filed.

Accused-172 Saurabh Tak,((exemption filed) A-170 Sudhir Mehta, exemption filed)

A-165 Shyam Bihari Gupta, A-153 Shabbir Khan, A-128 Manish Chaudhary, A-129 Deepak Shrimali, A-127 Abhay K. Shah, and A-118 Jitender Vyas on bail.

For Awaiting Death Report

Death report of accused No.122 (Virendere Modi) has not been filed. Now death report of accused No.122 (Virender Modi) be called for **03.05.2024** through SHO concerned.

(Accused Marked their presence)

Accused No. 116 Nitin Rathore, No.118 Jitender Vyas, No. 127 Abhay K. Shah, No. 128 Manish Chaudhary, No. 129 Deepak Shrimali, No. 136 Akshat Singh, accused No. 139 Naveen Kumar, accused No. 140 Surender Singh, No. 141 Aditya Sarada, No. 147 Vimal Sanwarmal Sharma, accused No. 149 Vijay Shukla, No. 150 Ajit Singh Rathore, No. 153 Shabbir Khan, No. 158 Ramlal Arya, No. 161 Praveen Kumar, No. 165 Shyam Bihari Gupta, No. 173 Peeyush Aggarwal, No. 176 Raj Kumar Modi, No. 178 Mahesh Dutt Sharma, No. 182 Nimesh Kumar Ramsh Chandra Soni, No. 183 Rituraj Singh, No. 184 Dushyant Singh Rathor, No. 185 Shashank Shekhar Singh Rathore, No. 186 Jitesh Kumar Parmar.

(Application for marking presence of accused No.181 Neha Kataria)

An application for marking presence of accused No.181 Ms. Neha Kataria through her counsel and exempting the accused from personal appearance as already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 181 Ms. Neha Kataria is hereby marked.

(Application for marking presence of accused No.180 Ichchhita Dungarwal)

An application for marking presence of accused No.180 Ichchhita Dungarwal through her counsel and exempting the accused from personal appearance as

already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 180 Ichchhita Dungarwal is hereby marked.

(Application for seeking exemption)

Separate applications seeking exemption from personal appearance on behalf of accused No.117 (Priyanka Modi), accused No. 115 (Vivek Harivyasi), accused No. 121 (Paras Bolia), accused No.130 (Jainam Rathor), accused NO.133 (Prakash Chandra Purohit), Accused No.138 (Gurbir Singh Sandhu), accused No.146 (leena Harivyasi), accused no. 152 (Nazima Khan), accused No. 159 (Hemant Kumar Jain) accused No. 166 (Ravi Tak) and accused No. 162 (Naveen Chaudhary), accused No. 163 (Megha Chauhan) accused No. 164 (Indu Tak), Accused No. 170 (Sudhir Mehta), Accused No.171 (Raj Kumar Bohra), accused NO.172 (Saurav Tak), accused No.174 (Paramvir Singh Sangwan), accused No.179 (Damyanti Bhandari), accused No.187 (Mahesh Kumar Tak) have been filed. Heard. In view of the grounds mentioned in the application, the same are allowed and the accused named above are exempted from personal appearance for today only.

(Proceedings adjourned before High Court qua accused No. 135)

As far as accused Siddharth Chauhan (135) is concerned, counsel appearing on behalf of accused has placed on record copy of orders dated 18.05.2023, passed by Hon'ble High Court in CRM-M-27904-2022 and order dated has prayed that PO proceeding may be adjourned qua accused Siddharth Chauhan (135). Learned Prosecutor for SFIO has made a note on the margin of order sheet that 'Interim order of P.O. proceedings adjournment in force.' Heard. The PO proceedings qua accused Siddartha Chauhan (135) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **03.05.2024** for awaiting further orders of Hon'ble High Court.

(Application under Section 306 of Cr.P.C. on behalf of accused No. 160 Shivraj Sharma)

Reply to the application under Section 306 of the Code of Criminal Procedure, 1973, for the tender of pardon to applicant/accused No. 160/Shivraj Sharma and allowing him to make a full and true disclosure of the whole of circumstances within his knowledge has not been filed. On the request of learned Prosecutor for SFIO-Department, matter is adjourned to **03.05.2024**, for filing reply and consideration on aforesaid application.

(Production warrants of accused)

Accused Sudhir Punia (No. 143) has not been produced. Now, production warrant of accused Sudhir Punia (No. 143) be issued for **03.05.2024** through video conferencing.

Accused namely Mukesh Modi (113) not produced by the Jail Authority by the District Jail Badmer Rajasthan. Let, fresh production warrant of accused Mukesh Modi (113) be issued to District Jail Badmer, Rajasthan for producing through video conferencing on **17.11.2023**.

Production warrants of Accused No. 113/Mukesh Modi, No. 114/Rahul Virender Modi, No. 120/Vibhav Lodha, No. 123/Rohit Modi, No. 125/Rajeshwar Singh, No.126/Bharat Modi, No. 131/Ishwar Singh Sindal, No.134/Vivek Purohit, No. 142/Bharat Das Vishnav and No. 177/Rajiv Kumar Rana be issued to the Superintendent, District Jail concerned for **03.05.2024** for producing the above-named accused persons before the Court through VC.

(Approvers)

Statement of five accused persons namely **Parveen Kumar (161), Nimesh Kumar Ramesh Soni (182), Ritu Raj Singh (183), Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, were recorded on 22.05.2023

(Awaiting further orders)

Accused namely Vivek Harivyasi (115), Surender Singh (140), Raj Kumar Modi (176) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **03.05.2024** for appearance.

Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **03.05.2024** for appearance.

(Awaiting further orders)

No further order of Hon'ble Rajasthan High Court against accused Meenakshi Modi (132) and Neha Ghemawat Modi (124), received. An application has been moved on behalf of accused Meenakshi Modi (132) and Neha Ghemawat Modi (124) stating therein that Hon'ble Supreme Court of India has been pleased to grant interim relief qua no coercive action be taken. He undertakes that both the accused will appear before the Court at the earliest. Now to come up on **03.05.2024** for further orders as well as for appearance of both the accused.

(Accused persons, whose matters are pending before Hon'ble High Court)

Accused No. 135 Sidharth Chauhan.

proclamation issued

Accused No.**137** (Shinder Pal Singh) not appeared despite direction of Hon'ble High Court. Several times notices were issued but received back unexecuted. Let presence of accused **No.137** (Shinder Pal Singh) is ordered to be secured through proclamation u/s 82 CrPC returnable for 03.05.2024. The executing Constable is directed to publish the proclamation on or before 20.03.2024. He is further directed to appear in person on 01.04.2024 for recording his statement regarding execution of proclamation against the Accused No.**137** (Shinder Pal Singh).

Bailable warrants

Bailable warrants of accused No.**117** (Priyanka Modi) accused company SEARS Built Pvt. Ltd.No. **(83)**, Alba Polymers Ltd. **(101)**, Padamawati Art creation Pvt. Ltd. **(107)**, Vishal Ditigal Studio **(112)** be issued for **03.05.2024**.

Monika SG-1

Roopam (UID No.HR-0146)
ADJ,Gurugram. 09.02.2024